

## **Free Legal Aid Cell Shri Sughan Chand ... vs Govt. Of Nct Of Delhi And Others on 23 July, 2001**

**Equivalent citations: AIR2001DELHI455, 93(2001)DLT28, 2001(60)DRJ297, AIR 2001 DELHI 455, (2001) 60 DRJ 297, (2001) 93 DLT 28, (2002) 1 CHANDCRIC 6**

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**Bench: Arijit Pasayat, D.K. Jain**

ORDER

Arijit Pasayat, C.J.

1. This is a petition filed on behalf of an association of public activists in public interest. Main grievance in this petition is that as a result of display of fire works and use thereof during festivals and marriages, physical and mental hazard is suffered by adults as well as children. Noise pollution is caused due to use of high-sounding explosive fire works and other blaring sound-producing devices and the effect of the same results in pollution in sound, which is hazardous. It is also submitted that because of indiscriminate use of loudspeakers, noise pollution has become a routine affair affecting mental as well as physical health of citizens. There is noise pollution notwithstanding specific instructions issued by the Deputy Commissioner of Police, Head Quarters, Delhi. It is highlighted that manner in which sound pollution is being caused and the impact of such sound pollution on the health of the people, is a cause for great concern.

2. "Pollution" is noun derived from the transitive verb "pollute", which, according to the Random House Dictionary of the English Language (College Edition, 1977), means:-

"(1) to make foul or unclean, dirty : to pollute the air with smoke.

(2) to make impure or morally unclean, defile, desecrate to soil, defile.

Synonyms 1. Soil, befoul, 2. Taint, examinable, corrupt, debase.

According to Halsbury's Laws of England, Fourth Edition, Vol. 38, 'pollution' means "the direct or indirect discharge by man of substances or energy into the aquatic environment resulting in hazard to human health, harm to living resources and aquatic ecosystems, damage to amenities or interference with other legitimate uses of water." The above definition relates to pollution of water,

and has not covered pollution in general. As regards noise pollution, it simply connotes unwanted sound in the atmosphere. It is unwanted because it lacks the agreeable amicable quality. Noise is, therefore, sound, but it is pollution when the effects of sound become undesirable. The Encyclopedia Britannica (Vol. 16, 1968, p. 558) has stated:-

"In acoustics noise is defined as any undesired sound. According to this definition, a sound of church bells may be music to others. Usually, noise is a mixture of many tones combined in a non-musical manner."

The Encyclopedia Americana further states:-

"Noise by definition is unwanted sound. What is pleasant to some ears may be extremely unpleasant to other, depending on a number of psychological factors. The sweetest music, if it disturbs a person who is trying to concentrate or to sleep, is noise to him, just as the sound of a pneumatic riveting hammer is noise to nearly everyone. In other words, any sound may be noise if circumstances cause it to be disturbing."

The pollution as evil, thus brings the society to understand that mankind is part of nature. Richard Maybe, in his "Handbook on Pollution" observes that the 'root cause of pollution probably lies in the sort of world we have chosen to build for ourselves, and in our thoughtless worship of progress at any cost. This amply illustrates that pollution is plain progress crisis.

3. It is seen that various environmental laws have failed to afford sufficient remedial measures for the individual sufferers, and the criminal liability created there under is mostly generalized and is of little avail to the person or persons who become victims of any pollutant. Another vital aspect lacking in the environmental laws is that there is no independent law on noise pollution.

4. The Apex Court had also occasion recently to deal with the cases of noise pollution. (See Church of God (Full Gospel) in India v. K.K.R. Majestic Colony Welfare Association and Others ).

5. Noise Pollution (Regulation and Control) Rules, 2000 (in short, 'Noise Pollution Rules') framed by the Central Government under the provisions of the Environment (Protection) Act, 1986 read with Rule 5 of the Environment (Protection) Rules, 1986. Rule 3 of the Noise Pollution (Regulation and Control) Rules, 2000 provides for ambient air quality standards in respect of noise for different areas/zones as specified in the Schedule annexed to the Rule which is as under:-

"Ambient Air Quality Standards in Respect of Noise Areas Code Category of area/zone Limits in dB(A) Leq Day-time Night-time Note - (1) Day-time shall mean from 6.00 a.m. to 10.00 p.m. (2) Night-time shall mean from 10.00 to 6.00 a.m. (3) Silence zone is defined as an area comprising not less than 100 meters around hospitals, educational institutions and courts. The silence zones are zones, which are declared, as such by the competent authority.

(4) Mixed categories of areas may be declared as one of the four above-mentioned categories by the competent authority."

6. Other relevant Rules for controlling noise pollution are:-

"4. Responsibility as to enforcement of noise pollution control measures-

(1) The noise levels in any area/zone shall not exceed the ambient air quality standards in respect of noise as specified in the Schedule.

(2) The authority shall be responsible for the enforcement of noise pollution control measures and the due compliance of the ambient air quality standards is respect of noise.

5. Restrictions on the use of loudspeakers/public address system-

(1) A loudspeaker or a public address system shall not be used except after obtaining written permission from the authority.

(2) A loudspeaker or a public address system shall not be used at night (between 10.00 p.m. to 6.00 a.m. except) in closed premises for communication within, e.g. auditorial, conference rooms, community halls and banquet halls.

6. Consequences of any violation in silence zone/area-

Whoever, in any place, covered under the silence zone/area commits any of the following offences, he shall be liable for penalty under the provisions of the Act-

(i) whoever, plays any music or uses any sound amplifiers,

(ii) whoever, beats a drum or tom-tom or blows a horn either musical or pressure or trumpet or beats or sounds any instrument, or

(iii) Whoever, exhibits any mimetic, musical or other performances of a nature to attract crowds.

7. Complaints to be made to the authority-

(1) A person may, if the noise level exceeds the ambient noise standards by 10dB(A) or more given in the corresponding columns against any area/zone, make a complaint to the authority.

(2) The authority shall act on the complaint and take action against the violation in accordance with the provisions of these rules and any other law in force.

8. Power to prohibit, etc. continuance of music sound or noise-

(1) If the authority is satisfied from the report of an officer-in-charge of a police station or other information received by him that it is necessary to do so in order to prevent annoyance, disturbance, discomfort or injury or risk of annoyance, disturbance, discomfort or injury to the public or to any person, who dwell or occupy property in the vicinity, he may, by a written order issue such directions as he may consider necessary to any person for preventing, prohibiting, controlling or regulating-

(a) the incidence or continuance in or upon any premises of-

(i) any vocal or instrumental music,

(ii) sounds caused by playing, beating, clashing, blowing or use in any manner whatsoever of any instrument including loudspeakers, public address systems, appliance or apparatus or contrivance which is capable of producing or reproducing sound, or

(b) the carrying on in or upon, any premises of any trade, avocation or operation or process resulting in or attended with noise.

(2) The authority empowered under sub-rule (1) may, either on its own motion, or on the application of any person aggrieved by an order made under sub-rule (1), either rescind, modify or alter such order:

Provided that before any such application is disposed of, the said authority shall afford to the applicant an opportunity of appearing before it either in person or by a person or representing him and showing cause against the order and shall, if it rejects any such application either wholly or in part, records its reasons for such rejection."

7. Under Rule 2(C) of the said Rules, District Magistrate and Police Commissioner are a part of the machinery, which is enjoined with the duty of maintaining ambient and quality standard in respect of its use. Said Rule prescribes the "authority" for aforesaid purpose. It was submitted by Mr. Shali, learned counsel for the Government of NCT of Delhi that Delhi Police have issued circulars, published in various newspapers, informing the people that use of loudspeakers and other loud music system is prohibited.

8. The Explosive Act, 1884 regulates manufacture, possession, use, sale, transport, import and export of explosives. Manufacture and transactions in firecrackers are governed by this statute. Rule 87 of the Explosives Rules, 1983 prohibits manufacture of any explosive at any place, except in a factory or premises licensed under the Rules. On instruction, Mr. Shali stated that there is no manufacturing activity of

firecrackers taking place in the State of Delhi. Rule 113 deals with storage, i.e., possession, sale and use. For aforesaid purpose obtaining a license from the competent authority, i.e., Controller of Explosives is necessary. However, the DCP (Licensing) is authorized to permit storage firecrackers up to 50 kgs. and Chinese sparkles up to 400 kgs. Beyond aforesaid quantities, permission is granted by Controller of Explosives. Safety measures to be adopted are detailed in Rules 113 to 128. One of the important Rules is Rule 154. It provides for obtaining no objection certificate before grant of license. It is indicated that so far as State of Delhi is concerned, same has to be obtained from various authorities viz. Municipal Corporation of Delhi (in short, 'MCD'), Delhi Fire Service and local Police. MCD's role is to ensure location of possession, storage and sale in commercial areas.

9. In England, there was an Act called Noise Abatement Act, 1960, Section 1 of which has been superseded by sub-section (9) of Section 11 of the Control of Pollution Act, 1974. Noise and vibration generally have been dealt with in 34 Halsbury's Laws of England, Fourth Edition, para 324. Part III of the Control of Pollution Act, 1974, consisting of Sections 57 to 74 of that Act relates to measures for control of noise pollution. According to Section 58 of that Act, the noise to be actionable must amount to a nuisance in the ordinary legal sense. (See *Bandbury Urban Sanitary Authority v. Page* (1991) 8 QBD 97). The nuisance need not be a public nuisance, and interference with a person's personal comfort is enough, though at least in general, a private nuisance presupposes the possession and control of land from which the nuisance proceeds. Whether noise constitutes a nuisance is a question of degree, yet where the noise is caused maliciously, the same will be taken into account. (See *Christle v. Davey* (1303) 1 Ch 316).

10. One celebrated point, which the Indian law should be emulous of, is the provision under Section 62 of the English Control of Pollution Act, 1974, operating as perfect control of street noise, and the term 'street' under that Section is defined to mean 'a highway, any other road, footway, square or Court which is for the time being open to public'. Section 62 of that Act reads as follows:-

"62(1) Subject to the provisions of this Section, a loudspeaker in a street shall not be operated-

(a) between the hours of nine in the evening and eight in the following morning for any purpose'

(b) at any other time, for the purpose of advertising any entertainment, trade or business;

(c) if the loudspeaker forms part of a public telephone system;

(d) if the loudspeaker:-

(i) is in or fixed to a vehicle and

(ii) is operated solely for the entertainment of or for communicating with the driver or a passenger of the vehicle or, where the loudspeaker is or forms part of the horn or similar warning instrument of the vehicle, solely for giving warning to other traffic, and

(iii) is so operated as not to give reasonable cause for annoyance to persons in the vicinity;

(e) otherwise than on a highway, by persons employed in connection with a transport undertaking used by the public in a case where the loudspeaker is operated solely for making announcements to passengers or prospective passengers or to other persons to be employed;

(f) by a traveling showman or land which is being used for the purposes of a pleasure fair;

(g) in case of emergency.

Clause (b) of sub-section (1) of Section 62 does not apply to the operation of a loudspeaker between the hours of noon and seven in the evening on the same day of the loudspeaker-

(a) is fixed to a vehicle which is being used for the conveyance of a perishable commodity for human consumption; and

(b) is operated solely for informing members of the public (otherwise than by means of words) that the commodity is on sale from the vehicle; and

(c) is so operated as not to give reasonable cause for annoyance to persons in the vicinity.

While construing the words "cause of annoyance", it was held in *Raymond v. Cook* (1958) 3 All ER 407 that it was sufficient that an instrument was calculated to cause annoyance and it was not necessary to produce actual annoyance to persons.

11. The provisions of Section 62 have banned the use of loudspeakers in a street, and the 'street' defined as a highway and any other road, footways or square or Court which is for the time being open to the public. The expression open to public, which also occurs in Section 1(4) of the Street Offences Act, 1959, seems to have the same meaning as the phrase to which the public have access. Therefore, the expression street would cover every road, etc. on which members of the public are found who have obtained access without overcoming a physical obstruction or defying a prohibition express or implied, in other words, have in fact access either as a matter of right or by tolerance. (See *Harrison v. Hill*, 1932 SC (JT) 13 and *Buchanan v. Motor Insurer's Bureau* (1955) 1 All ER 607).

12. In India, the position is different, and the use of loudspeaker assumes the status of a fundamental right by virtue of Article 19(1) and Article 25 of the Constitution. Article 19(1) provides that all citizens have the right-

- (a) to freedom of speech and expression;
- (b) to assemble peaceably and without arms;
- (c) to form associations or unions;
- (d) to move freely through out the territory of India.

Although the right as specified in (a), (b), (c) and (d) above is subject to reasonable restriction imposed or imposable by law in the interest of-

- (i) sovereignty and integrity of India;
- (ii) security of the State;
- (iii) friendly relations with foreign States;
- (iv) public order, decency or morality or in relation to contempt of Court, defamation or incitement to offence;
- (v) general public.

It may not be missed that the restrictions to be placed in the interests of the general public to obtain in relation only to the right to move freely throughout the territory of India, which right has not so much to do with the use of a loudspeaker, with the result that the right to freedom of speech and expression, or to assemble peaceably and without arms and to form associations or unions, which are manifest most in advertisement of wares or entertainment shows, speeches or party leaders or office bearers of any Unions, the assemblage of guests or visitors at marriage or birthday parties or at fairs, melas or exhibitions, the street processions or Shobha Yatras betokening a social or religious festivity or the twists and pop songs heralding a marriage procession, or the election campaign of a candidate, which must and shall invariably go with a loudspeaker, and all these are subject to reasonable restrictions on ground not of noise being a pollutant, but only on grounds of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States or public order, decency or morality or in relation to contempt of Courts, defamation or incitement to offence.

13. The one thing that can conceivably cover a ban on noise by loudspeakers can of course, be decency, but the difficulty, again, is that the word decency being itself undefined, public shall have to wait until some verdict of the higher judiciary might declare noise as contrary to decency.

A bye-law of a Municipality requiring permission for using a loudspeaker does not infringe Article 19(1)(a). The State can regulate the use of loudspeakers and mechanical or other contrivances to simplify sound, and does not amount to an infringement of the right under Article 19(1)(a).

Then comes Article 25 of the Constitution protecting the freedom of conscience and free profession, practice and propagation of religion. Clause (1) of this Article states:-

"Subject to public order, morality and health and to the other provisions of this part, all persons are equally entitled to freedom of conscience and the right freely to profess, practice and propagate religion."

This right is made subject only to public order, morality and health. Since this right is subject to health, the noise caused by loudspeakers can be prohibited in the interest of health, but, then again, the nexus between noise and health will have to be judicially established.

As to the other categories of noise pollution, aero planes, trains, cars and all varieties of automobile, the radio and the television sets, have the common symptom to add to the noise, since all of them produce noise, now considered to be the most dangerous pollutant of man's environment.

14. Noise not only causes irritation or annoyance but it does also constrict the arteries and increase the flow of adrenaline and forces the heart to work faster, thereby accelerating the rate of cardiac ailments, the reason being that continuous noise causes an increase in the cholesterol level resulting in permanent constriction of blood vessels, making one prone to heart attacks and strokes. The health experts are of the opinion that excessive noise can also lead to neurosis and nervous breakdown. There has been a high incidence of emotional disaster among people living near airports, as revealed by study. For children, noise not only causes hearing problems but also other neurological reactions that make the child irritable and hyperactive, and this has been noted for slowing down the process of development of the mental faculties of children. A study conducted by a medical team discovered an increased incidence of birth defect, still births and usually low weight among children born to mothers living near airports. A study of more than 2,25,000 births in Los Angeles area of U.S.A. by Dr. Nowall Jones Professor of Psychology at the University of California, proved that there were more birth defects among the babies whose mothers lived in noise polluted areas near the international airports compared to those who lived in quieter places. Similar results were obtained in a different study near London's Heathrow airport. Neonatal development is affected if the expectant mother is subjected to continuous noise stress during pregnancy. The result of tests conducted by medical experts, may or may not be accurate, but deserves serious consideration. Abortion because of uproar was known to the poet saint, Tulsidas, in the Sixteenth Century, who sang (The Ramcharit Manas, Sunder Kand 27/1) that the roar of Hanuman, while back from Lanka, brought abortion to many a demoness in the Lanka. These aspects have been highlighted by a learned author in a recently published article.

15. The measure of noise is known as the decibel. Noise researchers have shown that continuous noise level in excess of 90 decibels (units of measuring noise are called decibels and one decibel is the threshold of hearing, 30 decibels comes near whispering range and 60 decibels denotes the level

of normal talk) can cause loss of hearing and irreversible changes in nervous system. The World Health Organisation has fixed 45 decibels as the safe noise level for a city, though the four metropolitan cities of Bombay, New Delhi, Calcutta and Madras have usually registered more than 90 decibels, and Bombay has been rated as the third noisiest city in the world. New Delhi is said to be closely following Bombay in noise pollution and if control measures are not taken to reduce the sound level, the result would be alarmingly disastrous.

16. By the international standards, a noise level up to 64 decibels is considered tolerable. In the world, concern over noise pollution has resulted in introduction of noise proof motor vehicles, construction of sound barriers on roadsides, tunnels instead of flyovers and restrictions on noisy traffic.

17. Noise pollution has, thus, two sources - industrial and non-industrial, but the movement against noise pollution seems to be not that sound in India as in other countries, the reason, according to environmental experts, being that most of the people in India do not consider noise as pollution but as part of routine and modern life. In order to curb noise pollution, it is essential that people realize the dangerous consequences of noise and take some remedial measures.

18. The causes of noise pollution can also be divided into the categories, namely, natural and man-made. Natural causes of noise pollution are air noise, volcanoes, seas, rivers, exchanging voices of living organs including man and mammals. Some of the chief causes of man-made noise pollution are machine and modern equipment of various types, automobiles, trains, aero planes, religious and social celebrations, construction works, speeches, loudspeakers, resounding buildings and structures, and other things leading to noise pollution.

Noise effects human life in many ways. It affects sleep, hearing, communication, mental and physical health and makes men peaceless. It may even lead to the madness of people. However, noises, which are melodious, whether natural or man-made, cannot always be considered as factors leading to pollution.

19. Though in the areas of water and air pollution, there are two independent Acts in India, named as the Water (Prevention and Control of Pollution) Act, 1974 and the Air (Prevention and Control of Pollution) Act, 1981, there is no independent Act to deal with the problems of noise pollution. It was after the enactment of the Environment (Protection) Act, 1985, that attention was attracted to noise pollution. But instead of bringing any self-contained enactment for preventing noise pollution, the Air (Prevention and Control of Pollution) Amendment Act, 1987 (47 of 1987) was brought to include noise in the definition of the term "air pollutant".

20. The Air (Prevention and Control of Pollution) Act, 1981 was enacted under Article 253 of the Constitution of India to implement the decision taken at the United Nations Conference on Human Environment held at Stockholm in June, 1972 in which India participated. The definition clause under Section 2 thereof, being Clause (a) of that Section, had defined the expression air pollutant to mean "any solid, liquid, or gaseous substance present in the atmosphere in such concentration as may be or tend to be injurious to human beings or other living creatures or plants or property or

environment".

In view of Section 2(1) of the above Amendment Act of 1987, the definition of air pollutant as now rendered is "any solid, liquid, or gaseous substance (including noise) present in the atmosphere, ....".

21. It appears, the Air Pollution Board is preparing specific standards of noise level, both industrial and ambient noise level, and industries are expected to be asked to change their manufacturing processes or to use suitable techniques to keep the noise level low. The Bureau of Indian Standards, it is reported is also working to fix new standards of noise pollution levels. As different levels attempts are being made to develop gadgets that would control noise at sources.

In the opinion of scientists, green trees and plants absorb and dissipate sound, energy and air, therefore, considered to be effective protection against noise. The trees along the streets have been found to be good absorbers of the sonic bang. Besides changing traffic patterns in the cities of India, what is desired further is that vehicles must be compelled to fit efficient mufflers or silencers to reduce noise. The researchers on noise say that noise levels in excess of 90 decibels for continuous periods can cause loss of hearing. It can also cause neurological, digestive and metabolic disorder. A single exposure of 150 decibels is said to cause permanent injury to the ear's internal mechanism.

22. The environmental situation has to be treated as an emergency situation. The environment pollution is still regarded as 'a subject of halting legislation, hypocritical implementation and helping interpretation', as observed by the Apex Court. Not only the environmental laws should be refined in a manner which could give a legal justification to civil assessment in terms of compensation but also to be re-evaluated in manner that violation of pollution laws should become unnecessary in the times to come, and this can materialize by providing sufficient incentives to the industries and education to the layman.

23. Where noise can be said to amount to nuisance, the person causing noise can be restrained by injunction, even though that person was causing noise in the course of conducting his business. Where the nuisance complained and found, was noise generated by the hammering of steel sheets with hammers varying in weight from half a pound, it was held in *Gotham Construction Co. v. Amulya Krishna Ghose*, AIR 1969 Cal 91 that no money could afford adequate relief to the plaintiff and his neighbours, who are thereby discomforted. It was observed that in determining whether such noise was actual discomfort, the Court is an expert of experts and can need no opinion evidence of an expert in order to determine whether hammering of steel plates by hammers up to four pounds in weight would create a terrific noise or not and whether such nuisance could be wholly abetted or not by treating the workshop with the well known method of acoustics.

Thus, a person can claim injunction to stop nuisance if in a noisy locality, there is substantial addition to the noise by introducing some machine, instrument or performance at defendant's premises which materially affects the physical comfort of the occupants of the plaintiff's house.

Pollution of air, or of water, or of atmosphere through noise, continues to be part of and not severable from the common law of nuisance despite the enactment of the Air (Prevention and Control of Pollution) Act, 1981, the Water (Prevention and Control of Pollution) Act, 1974 or the Environment (Protection) Act, 1986. The purpose of these enactments has been to include the pollution control measures in the wider conspectus of social justice.

24. The effect of noise on health is a matter, which has yet not received full attention of our judiciary, which it deserves. Pollution being wrongful contamination of the environment which causes material injury to the right of an individual, noise can well be regarded as a pollutant because it contaminates environment, causes nuisance and affects the health of a person and would, therefore, offend Article 21, if it exceeds a reasonable limit.

25. Noise pollution can be curbed by adopting certain measures. Environment eco-friendly technology should be adopted. Machinery should be designed and manufactured in such a way that it should not create more sound than allowable noise limits. Roads should be made sound proof, trees should be planted on both sides of the roads and outside the big factories and industries. Public awareness among masses should be created through seminars, conferences and the evil effects of noise pollution should be highlighted. Houses of God should be kept peaceful and noise free as it is rightly said that God is not deaf. Flights of aero planes should be also planned to curb noise. Noise Code regulating all aspects of noise pollution may be enacted. As the problem of noise pollution has already crossed the danger point and noise like a smog is threatening as a slow agent of death, immediate measures are needed to be taken in this regard, some of them being as follows:-

(i) The prescribed standards regarding noise by Govt. of India may be enforced strictly in letter and spirit.

(ii) Separate Courts regarding noise pollution may be established.

(iii) The cases should be decided within a prescribed time limit.

(iv) All District Magistrates and Sub-Divisional Magistrates should be empowered to issue prohibitory orders under Section 144 of the Code of Criminal Procedure, 1973 limiting the hours of loudspeakers in religious places and for other social gatherings and functions.

(v) The subject of environment protection may be made compulsory at school, college and University levels.

(vi) The press and media should play a constructive role to highlight disastrous effects of noise pollution and its remedy.

(vii) The District Administration and the concerned Pollution Control Boards should work out the modalities to prevent catastrophic effect of noise pollution by ensuring strict compliance with the statutory provisions, scanty though they are.

(viii) Both Central Government and State Government should consider the desirability of having adequate legislative measures to prevent this fast growing menace which though appears to be 'silent' has in fact potentialities of producing a future generation of deaf persons.

(ix) Permanent monitoring bodies should be appointed to make periodic review of the situation and suggest remedial measures. The composition of such body has to be determined by the State/Central Government.

(x) Use of firecrackers in religious festivals, marriage processions, etc. should be regulated properly. It should be ensured that they are used in residential areas in such a manner that there is no likelihood of danger to life and property. In marriage processions, use of firecrackers on the public streets shall be prohibited. Use of firecrackers like anars, phuljaris and the like which do not have wider danger potential may, however, be permitted in restricted manner. It may be permitted at the place of marriage in the open area comprising not less than 100 metres around it.

(xi) Use, if any, permitted should also be between specified time-periods and should not be permitted in silence zones, hospitals, nursing homes and other health centers.

(xii) Periodic display in Press and electronic media should be made about the desirability of young children not using dangerous firecrackers and safe use thereof.

(xiii) Rule 5(2) of the Noise Pollution Rules restricts the use of loudspeakers, public address system at night, i.e., between 10.00 p.m. to 6.00 a.m., except in closed premises, like auditorium, etc. These devices cannot be used even during the day without obtaining permission in terms of Rule 5(1) but experience shows that the Rule is more observed in breach than in observance. We direct that the authority empowered to take action under the said Rules shall give wide publicity to the Rule by inserting appropriate advertisements in at least six national daily newspapers. It will be the responsibility of the area S.D.M.s to see that the Rule is strictly adhered to in letter and spirit. Any default in this regard will be treated as misconduct and the defaulting officer shall be liable for disciplinary action, besides action for disobeying Court's order.

26. The writ petition is disposed of accordingly.